

was not the only grounds on which the motion was denied, contrary to defendant's representation in the present motion.

7. 9:00 AM CASE NUMBER: C24-02701

CASE NAME: ALYSS DORESE VS. AIDEN CIANI

***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF 1ST AMENDED CROSS COMPLAINT**

FILED BY: DORESE, ALYSS

TENTATIVE RULING:

Plaintiff and Cross-Defendant Alyss Dorese' special motion to strike allegations from the First Amended Cross-Complaint (FAXC) is granted in part. The Court orders the following paragraphs stricken from the complaint: paragraphs 13-25, 31-32, 49(c) and 60(a). All causes of action remain in the cross-complaint based upon the remaining allegations.

Background

On October 8, 2024, Plaintiff Dorese filed a complaint against Defendant Aiden Ciani for various landlord-tenant related torts, including breach of the warranty of habitability and related causes of action, a rent increase in violation of the Richmond Rent Control Ordinance and retaliation. Dorese alleges that she had a residential tenancy for a property in Richmond starting in 2007.

Ciani filed a cross-complaint on September 15, 2025, and then filed an amended cross-complaint on October 14, 2025. In the FAXC, Ciani alleges that he is the owner of the real property where Dorese is a tenant. (FAXC ¶¶1, 3-4.) Although not clearly alleged, it appears that Ciani lives at or near the property where Dorese lives. Ciani alleges that Dorese engaged in a pattern of hostile and discriminatory conduct towards Ciani, his family and his guests. (FAXC ¶¶5-12.)

Ciane alleges that in August 2025, Ciani (through counsel) told Dorese (through counsel) that she would need to temporarily relocate for 3-4 weeks so that necessary electrical upgrades could be done at the property. (FAXC ¶13.) Between August 28 and September 12, 2025, Ciani offered several relocation options and tried to get dates confirmed from Dorese, but Ciani alleges that Dorese refused to accept any of the location options or provide dates when she would relocate. (FAXC ¶¶13-24.) Ciani alleges that Dorese prevented him from proceeding with the temporary relocation because the Richmond Rent Ordinance requires the relocation notice to include the address of a comparable unit. (FAXC ¶25.)

Ciani listed the property for sale, but Dorese refused to allow real estate showings when she was not present. (FAXC ¶26.) For approximately two weeks, Dorese refused to allow any showings, citing illness. (FAXC ¶27.) During escrow, Dorese made false complaints regarding the furnace. On November 28, 2024, Ciani's contractor discovered that the furnace pilot had been deliberately turned off and Ciani's agent confirmed that the furnace was fully operational. (FAXC ¶28.) Dorese also refused to sign a tenant estoppel certificate, undermining the sale. (FAXC ¶29.) Following a 60-day notice of owner move-in on November 15, 2022, Dorese falsely claimed that she required

hospitalization for a tumor surgery, but no such surgery occurred. (FAXC ¶¶31-32.)

Ciani is suing Dorese for the following causes of action: (1) private nuisance, (2) breach of the lease, (3) IIED, (4) negligence, (5) intentional/ fraudulent misrepresentation and (6) intentional interference with prospective economic relations.

Dorese filed this special motion to strike portions of the first amended cross-complaint included in the third cause of action for intentional infliction of emotional distress; the fifth cause of action for intentional/fraudulent misrepresentation and the sixth cause of action for intentional interference with prospective economic relations. In total, Dorese wants to strike the following paragraphs in the FAXC: 13 – 25, 28, 29, 31, 32, 49(c) & (d), 59 - 65 and 69(c) & (d).

Standard of Review

“Resolution of an anti-SLAPP motion [or special motion to strike] involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a ‘summary-judgment-like procedure.’ [Citation.]” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384-385.)

Protected activity is defined in the statute to be: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code of Civil Procedure §425.16(e).)

“[M]ixed claims, which are based on allegations of both protected and unprotected activity, are subject to the first step of the anti-SLAPP analysis because a plaintiff cannot shield ‘particular allegations of protected activity, themselves sufficient to give rise to a claim for relief, from a motion to strike by intermingling them with unprotected acts.’ [Citations.]” (*Golden Gate Land Holdings LLC v. Direct Action Everywhere* (2022) 81 Cal.App.5th 82, 92; see also, *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010.) In a mixed cause of action, the Court “should analyze each claim for relief—each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action—to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion.” (*Bonni, supra*, 11 Cal.5th 995, 1010.)

Claims are not mixed where the allegations of protected activity merely provide context, without supporting a claim for recovery, and such incidental or extraneous allegations cannot be stricken under the anti-SLAPP statute. (*Golden Gate Land Holdings LLC, supra*, 81 Cal.App.5th at 92;

Baral, supra, 1 Cal.5th at 394.)

“At this first step, courts are to ‘consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.’ (*Park [v. Board of Trustees of California State University]* (2017)) 2 Cal.5th at p. 1063.) The [cross-]defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity. [Citation.]” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.) For each cause of action, the Court must look to “the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.” (*Park, supra*, 2 Cal.5th 1057, 1063.)

The Court determines whether a complaint involves protected activity by reviewing the allegations in the complaint and what alleged facts support each claim. The moving party cannot change the allegations in the challenged pleading to suit their arguments. (See, e.g. *Central Valley Hospitalists v. Dignity Health* (2018) 19 Cal.App.5th 203, 217, 218-219 [rejecting defendant’s argument that the court should consider defendant’s evidence of what plaintiff’s claim was about].) However, the Court can consider the evidence offered by the parties when deciding whether the statements are protected activity. (See, e.g. *D.C. v. R.R.* (2010) 182 Cal.App.4th 1190, 1226.; *Nygård, Inc. v. Uusi-Kerttula* (2008) 159 Cal.App.4th 1027, 1042.)

At the second step, “the burden shifts to the [cross-complainant] to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken.” (*Baral, supra*, 1 Cal.5th at 396.)

Analysis

The Court’s first task on prong one is to determine what allegations, if any, constitute protected activity. Then, the Court can determine if the protected activity arises from any causes of action, or is incidental to the claims.

There are four allegations of potential protected activity identified in the motion: (1) relocation communications (paragraphs 13-25, 49(c)); (2) furnace complaints (paragraphs 28-29, 49(d), 60(b) and 69(c)); (3) response to 60-day notice (paragraphs 31-32, 60(a)) and (4) refusal to sign tenant estoppel certificate and refusing to allow real estate showings at the property (paragraphs 26, 27 and 29, 69(d)).

As to the relocation communications (paragraphs 13-25 and 49(c)), Dorese argues that these are communications between the parties’ attorneys while this lawsuit was pending and are protected activity under section (e)(2), “[a]ny written or oral statement or writing made in connection with an issue under consideration or review by a... judicial body”. “Statements made ‘in anticipation of a court action’ may be entitled to protection under the anti-SLAPP statute. [Citation.] “[J]ust as communications preparatory to or in anticipation of the bringing of an action or other official proceeding are within the protection of the litigation privilege ... [,] ... such statements are equally

entitled to the benefits of section 425.16.” [Citation.]” (*Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc.* (2021) 59 Cal.App.5th 995, 1005; *accord* *Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1268.)

Here, the communications are alleged to have occurred in August and September 2025. Dorese filed her complaint in this case for habitability defects in October 2024. Although the complaint does not include allegations on electrical issues (beyond a lack of heat), Dorese’ evidence shows that the parties’ attorneys were discussing the electrical issues and related temporary relocation. (Beene dec. ¶¶3-7 and ex. A; Wolff dec. ¶¶2-4.)

Given the nature of the attorneys’ communications, along with the pending habitability lawsuit by Dorese, the Court finds that the relocation communications in August and September 2025 are either statements made in this lawsuit or they are prelitigation communications for a likely amendment in this case to specifically include the electrical issues in the habitability claim. In either case, these communications were made in connection with an issue under consideration or review by a judicial body and as such constitute protected activity.

As to Dorese’ complaints about the furnace (paragraphs 28-29, 49(d), 60(b) and 69(c)) she argues that her communications with a prospective purchaser of the property regarding habitability is protected activity as habitability is a “. . . public issue or an issue of public interest”. (Cal. Code of Civ. Proc. § 425.16(e)(4).)

For the “analysis under the catchall provision, subsection 425.16(e)(4), ‘First, we ask what “public issue or ... issue of public interest” the speech in question implicates—a question we answer by looking to the content of the speech. (§ 425.16, subd. (e)(4).) Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest,’ a question we answer by examining the speech’s context. (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 149–150.)

Dorese relies on *Cross v. Cooper* (2011) 197 Cal.App.4th 357. In *Cross*, a tenant told a potential buyer of the property that a registered sex offender lived nearby. The landlord later sued the tenant for tortious interference. The court held that the tenant’s statements constituted protected activity because “[t]here is a strong and widespread public interest in knowing the location of registered sex offenders (Pen. Code, §§ 290, subd. (a), 290.03, subd. (a); Civ. Code, § 2079.10a)” (*Id.* at 358.)

Cross held that discussing the location of the registered sex offender was a matter of public interest, based upon a thorough analysis of the issue. Here, Dorese has not provided evidence that a tenant’s habitability issues are a matter of public interest. (Providing a hyperlink in the brief is inappropriate as the Court does not click on such links.) Nor has Dorese provided a discussion of the relevant laws to otherwise convince this Court that habitability issues are a matter of public interest. Further, *Cross* was decided before the California Supreme Court identified the two-part test to determine protected activity under section (e)(4).

Even if the Court were to conclude that habitability issues, such as broken furnace, are

matters of public interest, Dorese has not shown that there is a functional relationship exists between the speech and the public conversation about some matter of public interest, as required by *FilmOn*.

The Court finds that Dorese has not met her burden of showing that the furnace complaints constitute protected activity.

As to the claim that Dorese falsely claimed she had a medical issue in response to the 60-day notice (paragraphs 31-32, 60(a)), Dorese argues that her response is protected under section 425.16(e)(1) and (2). The filing of an unlawful detainer action constitutes protected activity under section 425.16(e)(1). *Birkner v. Lam* 156 Cal.App.4th 275 held that the service of a termination notice in anticipation of an unlawful detainer constitutes protected activity. (*Id.* at 281.) Similarly, *Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467 held that service of a 3-day notice to pay or quit is protected activity. (*Id.* at 1480-81.) Finally, as Dorese points out, communications *in response to protected activity* are themselves protected. (*Gallanis-Politis v. Medina* (2007) 152 Cal.App.4th 600, 611.)

Ciani argues that “ ‘prelitigation communication is privileged [or protected activity] only when it relates to litigation that is contemplated in good faith and under serious consideration.’ [Citation.]” (*Nirschl v. Schiller* (2023) 91 Cal.App.5th 386, 402.) He also points out that “Conduct does not become protected activity simply because it follows protected activity. (See *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78 (*City of Cotati*) [‘That a cause of action arguably may have been triggered by protected activity does not entail that it is one arising from such.’];...” (*Gazal v. Echeverry* (2024) 101 Cal.App.5th 34, 41.)

Here, the service of a 60-day notice of termination is protected activity. While not every action following a protected communication will constitute protected activity, here Dorese is alleged to have directly responded to the 60-day notice by claiming a medical reason that would delay or defeat the 60-day notice. The Court finds that Dorese’s response to that notice also constitutes protected activity.

As to the allegations that Dorese refused to sign the tenant estoppel certificate (paragraphs 29 and 69(d)), Dorese argues that her refusal to sign the estoppel certificate is connected to the pending litigation because the certificate would require Plaintiff to admit that her pending habitability lawsuit is unwarranted. The estoppel certificate is a two page form from the California Association of Realtors where the tenant is supposed to fill out various information about the tenancy, including the terms of the lease and who pays the utilities. On page two, there are several representations, including “27. All obligations of Housing Provider under the Lease have been fully performed and Housing Provider is not in default under any term of the Agreement. Tenant has no defenses, off-sets or counterclaims to the payment of rent or other amounts due from Tenant to Housing Provider under the Lease.” (Dorese dec. ¶13 and ex. F.)

The Court does not find Dorese’s argument persuasive. Dorese could have completed the form, but crossed out paragraph 27 or made a notation on the form that there was a pending habitability lawsuit. *Birkner, supra*, 156 Cal.App.4th 275 does not help Dorese’s argument on this

issue.

The Court is not convinced that the refusal to sign an estoppel certificate is sufficiently connected to the pending lawsuit to constitute a communication made in connection with a matter under consideration by the judiciary.

In summary, the Court finds that the following actions constitute protected activity: the relocation communications (paragraphs 13-25 and 49(c)) and response to 60-day Owner Move-In (FAXC ¶¶ 31-32 and 60(a)).

In the third cause of action for IIED, Dorese seeks to strike allegations regarding the relocation communications (FAXC ¶49(c)) and interfering with the sale of property by refusing access and making false complaints about the furnace (FAXC ¶49(d).) The Court has found that paragraph 49(c) on the relocation communications constitutes protected activity. The Court also finds that the IIED cause of action (at least a portion of it) arises from those allegations and that the relocation communication allegations are not incidental to this cause of action. Therefore, the Court finds that the IIED cause of action based upon paragraph 49(c) arises from protected activity. There are other allegations to support an IIED cause of action and therefore, the Court will consider whether to strike paragraphs 13-25 and 49(c) on prong two.

In the fifth cause of action for fraud, Dorese seeks to strike the entire cause of action, which is based on the following alleged misrepresentations: false medical complaint in response to the 60-day notice and false complaints regarding the furnace. (FAXC ¶60(a), (b).) The Court has found that paragraph 60(a) on the response to the 60-day notice constitutes protected activity. The Court also finds that the fraud cause of action (at least a portion of it) arises from those allegations and thus the response to the 60-day notice allegations are not incidental to this cause of action. Therefore, the Court finds that the fraud cause of action based upon paragraph 60(a) arises from protected activity. There are other allegations to support the fraud cause of action and therefore, the Court will consider whether to strike paragraphs 31-32 and 60(a) on prong two.

In the sixth cause of action for intentional interference with prospective economic relations, Dorese seeks to strike allegations regarding false furnace complaints and refusing to sign the tenant estoppel certificate. (FAXC ¶69(c), (d).) As explained above, these actions do not constitute protected activity. Paragraph 69(d) also includes allegations regarding Dorese's refusal to allow real estate showings due to illness and refusal to use the SupraBox for showings (FAXC ¶¶26, 27), however, Dorese has made it clear that she is not challenging those allegations. (Reply p.2:8-10.)

Turning to prong two, the Court must decide if Ciani can show a probability of prevailing on his third cause of action as it relates to the relocation communications and on his fifth cause of action as it relates to Dorese's response to the 60-day notice, which are included in paragraphs 13-25, 31-32, 49(c) and 60(a). Ciani has the burden of showing that the claims that arise from protected activity are legally sufficient and factually substantiated. Ciani was required to provide evidence for each claim under the prong-two analysis, and he has failed to include any evidence. Therefore, the Court finds that Ciani has not met his burden on prong-two and orders the following paragraphs stricken from

the complaint: paragraphs 13-25, 31-32, 49(c) and 60(a).

Dorese requests attorney fees for prevailing on this motion. Dorese may file a motion for fees. That motion should limit any request for fees to the issues upon which she prevailed. On a request for fees on a partially successful special motion to strike the court should consider the extent to which the “motion changed the nature and character of the lawsuit in a practical way.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 345 [discussing factors to consider when awarding fees on a partially successful special motion to strike].)

8. 9:00 AM CASE NUMBER: C24-03193
CASE NAME: MATTHEW BERNIER VS. JANEEN NEGHERBON
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: BERNIER, MATTHEW J.
TENTATIVE RULING:

Plaintiffs/cross-defendants Matthew J. Bernier and Patricia Mitchell Bernier as trustees of the Bernier Family Trust (“Plaintiffs”) own and reside on property located at 3237 Camino Diablo, Lafayette (the “Dominant Property”). Defendants/cross-complainants Janeen Negherbon and Ben Paramonte (“Defendants”), reside on property next to Plaintiffs, which is owned by Janeen Negherbon, and is located at 3235 Camino Diablo, Lafayette (the “Subservient Property”). This lawsuit relates to a dispute over an easement that involves the properties and is focused on the easement’s size, scope, and proper uses. Both parties assert claims for quiet title, trespass, private nuisance, declaratory relief, and injunctive relief against one another, and Defendants also assert a claim for negligence. Plaintiffs have filed a motion for leave to file a second amended complaint, which Defendants oppose.

For the reasons discussed below, the Court **GRANTS** Plaintiffs’ motion for leave to file a second amended complaint.

Background

Plaintiffs and Defendants are neighbors who are currently in a dispute relating to an easement that cuts through Defendants’ property in order to provide Plaintiffs with access to the nearest road. Plaintiffs purchased the Dominant Property around December 2014, and Defendant Janeen Negherbon bought the Subservient Property in February 2018. Plaintiffs allege that a gate and fence have been in place at the easement since 1981.

The parties appear to have lived in relative harmony as neighbors from 2018 until July of 2024, when Defendants started paying more attention to the easement, the land around it, and the property lines. Defendants take issue with the easement because the fence and gate interfere with their access to and also cover portions of the Subservient Property. Defendants assert that the easement is specifically for ingress, egress, and utilities, and not for parking, recreation and sports, loitering, gathering, or letting dogs run loose. Defendants placed a recycle bin on a property line of the easement in order to show where the Subservient Property began, and so to stop Plaintiffs’ guests from parking on the Subservient Property. Hostilities continued to increase, resulting in the instant litigation.